Temporary

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# Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other Purposes", approved October 6th, 1919, known as the "Trading with the Enemy Act" and the Amendment to such Act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other Purposes," approved March 28, 1918, and the Amendment to such Act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other Purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, certain real estate now being held and administered by him as such Alien Property Custodian, and heretofore, upon requirement, conveyed, transferred, assigned and delivered to him as the property of "the widow and heirs-at-law and next of kin of Edward Schmitt, deceased, names unknown, whose address is Germany", which said persons he did after investigation determine to be enemies within the purview of said Act as amended, which property is described as follows, to-wit:

Lot eleven (11), in Block thirty-four (34), in Ogden's Addition to Chicago, being a part of the NE ¼ of Section eight (8), Township Thirty-nine (39) north, Range fourteen (14), East of the 3rd P. M., as recorded in Book 2722, Page 189, Recorder's Office, Cook County, Illinois, with the improvements thereon. — Real Estate

My reasons for the foregoing determination, order, rule and regulation are:

(a) That property such as that herein described can not usually be sold to advantage at public sale after public or other advertisement.

(b) That an advantageous offer for the purchase of said property has been received by the Alien Property Custodian.

(c) That an attempted sale at public auction would be a useless formality and would involve unnecessary expenses, delay and inconvenience which should be avoided.

(d) That the said enemies, whose names have been ascertained to be Clara M. Schmitt, Martha S. Selzam, Lulu von Scanzoni, Elizabeth Schultheiss, and Dr. William Schmitt-Marcel, have expressed their approval of the private sale of said property at the price offered.

WARREN G HARDING

THE WHITE HOUSE,
*June 15, 1922.*

[No. 3692.]

GOVERNMENT PRINTING OFFICE